AKEDA PHARMACEUTICALS U.S.A., INC. et al v. ZYDUS PHARMACEUTICALS (USA) INC. et al

Plaintiff:	TAKEDA PHARMACEUTICALS U.S.A., INC. and VIROPHARMA BIOLOGICS LLC
Defendant:	ZYDUS PHARMACEUTICALS (USA) INC. and ZYDUS LIFESCIENCES LTD.
Case Number:	3:2026cv12849
Filed:	September 30, 2026
Court:	U.S. District Court for the District of New Jersey
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
September 30, 2026	**Filing 2** Corporate Disclosure Statement by TAKEDA PHARMACEUTICALS U.S.A., INC., VIROPHARMA BIOLOGICS LLC. (LIZZA, CHARLES)
September 30, 2026	**Filing 1** COMPLAINT against ZYDUS LIFESCIENCES LTD., ZYDUS PHARMACEUTICALS (USA) INC. (Filing and Admin fee $ 405 receipt number ANJDC-18012205) , Related Case Selected, filed by VIROPHARMA BIOLOGICS LLC, TAKEDA PHARMACEUTICALS U.S.A., INC.. (Attachments: #1 Exhibit A, #2 Exhibit B, #3 Civil Cover Sheet)(LIZZA, CHARLES)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: Takeda Pharmaceuticals U.S.A., Inc. (Delaware) and ViroPharma Biologics LLC (Delaware)
  - Defendant: Zydus Pharmaceuticals (USA) Inc. (New Jersey) and Zydus Lifesciences Ltd. (India)
  - Plaintiff's Counsel: Saul Ewing LLP
- Case Identification: 3:26-cv-12849, D.N.J., 09/30/2026
- Venue Allegations: Plaintiff alleges venue is proper in the District of New Jersey based on Defendant Zydus Pharmaceuticals (USA) Inc. having a principal place of business in the district, conducting business in the district, and having previously consented to personal jurisdiction in the district in prior patent litigation.
- Core Dispute: Plaintiff alleges that Defendant's submission of an Abbreviated New Drug Application (ANDA) for a generic budesonide oral suspension infringes two patents related to stable corticosteroid compositions and their use in treating eosinophilic esophagitis.
- Technical Context: The technology concerns pharmaceutical formulations designed to improve the storage stability of corticosteroids like budesonide by using a specific antioxidant system, primarily for oral treatment of inflammatory esophageal conditions.
- Key Procedural History: This action was initiated under the Hatch-Waxman Act following Defendant's submission of ANDA No. 221618 with a Paragraph IV certification, which challenges the validity or infringement of the patents-in-suit. The patents are listed in the FDA's Orange Book for the branded drug EOHILIA®. Defendant provided a notice letter of its ANDA filing to the Plaintiff on August 18, 2026.

Case Timeline

Date	Event
2018-01-11	Priority Date for '064 and '934 Patents
2022-03-01	U.S. Patent No. 11,260,064 Issued
2023-01-31	U.S. Patent No. 11,564,934 Issued
2026-08-18	Defendant's Notice Letter Sent to Plaintiff
2026-09-30	Complaint for Patent Infringement Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 11,260,064 - Stable Corticosteroid Compositions (Issued: Mar. 1, 2022)

- The Invention Explained:
  - Problem Addressed: The patent addresses the problem of oxidative degradation in pharmaceutical compositions containing corticosteroids like budesonide, which can form undesirable impurities such as 21-dehydro budesonide (21-DHB) during storage, compromising the product's stability and shelf life ’064 Patent, col. 1:12-18 The patent also notes the challenge of creating formulations that are palatable and non-allergenic, particularly for pediatric patients ’064 Patent, col. 2:1-6 ’064 Patent, col. 7:59-67
  - The Patented Solution: The invention is a pharmaceutical composition that stabilizes the corticosteroid by including a specific antioxidant system comprising "a combination of ascorbic acid and a pharmaceutically acceptable salt of ascorbate" ’064 Patent, col. 2:59-63 This system is intended to protect the active ingredient from degrading in the presence of oxygen, thereby ensuring the composition remains stable over time ’064 Patent, abstract ’064 Patent, col. 2:46-52
  - Technical Importance: This approach allows for the creation of a stable, liquid oral formulation of budesonide, which is crucial for delivering a consistent and effective dose for treating conditions like eosinophilic esophagitis (EoE), especially in patients who have difficulty with other administration methods ’064 Patent, col. 2:1-6
- Key Claims at a Glance:
  - The complaint asserts infringement of at least independent claim 1 Compl. ¶41
  - Independent Claim 1 Elements:
    - A pharmaceutical composition comprising budesonide,
    - an antioxidant in an amount of from about 0.05% to about 0.5% w/w of the composition, wherein the antioxidant comprises a combination of ascorbic acid and a pharmaceutically acceptable salt of ascorbate,
    - and a flavoring agent, a sweetener, or a combination thereof,
    - wherein the pharmaceutical composition comprises less than 0.3% impurities formed by oxidative degradation,
    - and wherein the pharmaceutical composition is for oral administration.
  - The complaint reserves the right to assert other claims Compl. ¶40

U.S. Patent No. 11,564,934 - Stable Corticosteroid Compositions (Issued: Jan. 31, 2023)

- The Invention Explained:
  - Problem Addressed: As a divisional of the ’064 patent, this patent addresses the same technical problem: the need for a stable and palatable oral formulation to treat inflammatory gastrointestinal disorders like EoE ’934 Patent, col. 1:17-27
  - The Patented Solution: The ’934 Patent claims a method of medical treatment using the stable composition. The invention is a method for treating or alleviating the symptoms and inflammation associated with EoE by administering the pharmaceutical composition comprising budesonide and the specific ascorbic acid/ascorbate salt antioxidant system ’934 Patent, abstract ’934 Patent, claim 1
  - Technical Importance: By claiming the specific method of use, the patent provides protection for the therapeutic application of the stable formulation, linking the technical solution of the composition directly to its clinical benefit in treating EoE ’934 Patent, col. 4:1-5
- Key Claims at a Glance:
  - The complaint asserts infringement of at least independent claim 1 Compl. ¶54
  - Independent Claim 1 Elements:
    - A method of treating, or alleviating the symptoms of and inflammation associated with eosinophilic esophagitis in a subject in need thereof
    - comprising administering to the subject a pharmaceutical composition comprising budesonide,
    - and an antioxidant in an amount of from about 0.05% to about 0.5% w/w of the composition,
    - wherein the antioxidant comprises a combination of ascorbic acid and a pharmaceutically acceptable salt of ascorbate,
    - wherein the pharmaceutical composition comprises less than 0.3% impurities formed by oxidative degradation.
  - The complaint reserves the right to assert other claims Compl. ¶53

III. The Accused Instrumentality

- Product Identification: The accused instrumentality is "Zydus's ANDA Product," a generic budesonide oral suspension (2 mg/10 mL) for which Zydus has submitted ANDA No. 221618 to the FDA (Compl. ¶¶1, 30).
- Functionality and Market Context: The complaint alleges that Zydus's ANDA Product is intended to be a generic version of Plaintiff's EOHILIA® drug product Compl. ¶34 EOHILIA® is a corticosteroid indicated for the treatment of eosinophilic esophagitis in

patients 11 years of age and older Compl. ¶8 Plaintiff alleges Zydus is "a leading generic pharmaceutical company in the US" and seeks to commercially manufacture and sell its generic product prior to the expiration of the patents-in-suit (Compl. ¶1; Compl. ¶13). No probative visual evidence provided in complaint.

IV. Analysis of Infringement Allegations

The complaint alleges that Zydus's ANDA Product, and its proposed use, will infringe the asserted patents literally or under the doctrine of equivalents Compl. ¶42 Compl. ¶55 The infringement theory for the '934 method patent is based on inducement, alleging Zydus's product labeling will instruct users to perform the patented method Compl. ¶56

’064 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A pharmaceutical composition comprising budesonide...	The complaint alleges Zydus's ANDA Product is a budesonide oral suspension.	¶30	col. 7:11-13
an antioxidant in an amount of from about 0.05% to about 0.5% w/w of the composition, wherein the antioxidant comprises a combination of ascorbic acid and a pharmaceutically acceptable salt of ascorbate...	The complaint alleges on information and belief that the ANDA Product contains a formulation that meets this element.	¶42	col. 2:59-63
and a flavoring agent, a sweetener, or a combination thereof...	The complaint alleges on information and belief that the ANDA Product	¶42	col. 7:7-8

	meets this element.		
wherein the pharmaceutical composition comprises less than 0.3% impurities formed by oxidative degradation...	The complaint alleges on information and belief that the ANDA Product meets this stability requirement.	¶42	col. 8:66-67
and wherein the pharmaceutical composition is for oral administration.	The complaint identifies the ANDA product as an "oral suspension."	¶30	col. 5:48-49

’934 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating, or alleviating the symptoms of and inflammation associated with eosinophilic esophagitis in a subject in need thereof...	The complaint alleges Zydus's ANDA Product is a generic version of EOHILIA®, which is indicated for EoE, and its labeling will instruct this use.	¶34; ¶56	col. 8:10-15
comprising administering to the subject a pharmaceutical composition comprising budesonide, and an antioxidant...wherein the antioxidant comprises a combination of ascorbic	The complaint alleges that administering the Zydus ANDA product, which is alleged to have the claimed formulation, will constitute infringement.	¶55	col. 2:59-63

acid and a pharmaceutically acceptable salt of ascorbate...			
wherein the pharmaceutical composition comprises less than 0.3% impurities formed by oxidative degradation.	The complaint alleges that the administered Zydus ANDA product will meet this stability characteristic.	¶55	col. 8:66-67

- Identified Points of Contention:
    - Factual Scope Question: The central issue in this ANDA litigation will be whether the specific formulation detailed in Zydus's confidential ANDA submission falls within the scope of the claims. The analysis will depend entirely on a comparison of the ANDA's contents to the claim limitations.
    - Negative Limitation Question: A key technical question may be whether Zydus's product meets the limitation of "less than 0.3% impurities formed by oxidative degradation." The court may need to consider the conditions under which this impurity level is measured and whether the claim is definite.

V. Key Claim Terms for Construction

- The Term: "a combination of ascorbic acid and a pharmaceutically acceptable salt of ascorbate"
    - Context and Importance: This term defines the core antioxidant system. Its construction is critical because Zydus could argue its product uses a different antioxidant system (e.g., only one of the two components, a different salt, or a different ratio that functions differently) to design around the claim.
    - Evidence for a Broader Interpretation: The claim language "a combination of" does not specify ratios or manufacturing methods, suggesting that the mere presence of both components in the final formulation could suffice. The specification also discusses the components generally ’064 Patent, col. 2:59-63
    - Evidence for a Narrower Interpretation: Defendant may argue that the term implies a synergistic or functionally distinct effect that is only achieved within certain parameters demonstrated in the patent's examples. The patent's reliance

on data showing the effect of the antioxidant '064 Patent, FIG. 1 could be used to argue that "combination" requires achieving that specific result.

- The Term: "less than 0.3% impurities formed by oxidative degradation"
    - Context and Importance: This is a functional, negative limitation defining the product's performance. Practitioners may focus on this term because its interpretation determines the standard for infringement. A dispute could arise over the methodology, timing, and conditions (e.g., storage temperature, duration) required to measure this impurity level.
    - Evidence for a Broader Interpretation: Plaintiff may argue the plain language sets a clear, objective ceiling on impurities that the accused product must satisfy, regardless of specific testing protocols not mentioned in the claim itself '064 Patent, claim 1
    - Evidence for a Narrower Interpretation: Defendant may argue the term is indefinite if the conditions for measurement are not sufficiently described. Alternatively, Defendant may point to the stability testing disclosed in the specification (e.g., "at 40° C./75% RH") and argue that the claim scope is implicitly limited to performance under those or similar accelerated testing conditions '064 Patent, FIG. 1

VI. Other Allegations

- Indirect Infringement: The complaint alleges both induced and contributory infringement for both patents. The inducement theory is based on the allegation that Zydus's proposed product labeling will instruct and encourage physicians and patients to administer the drug in a way that directly infringes the claims (Compl. ¶¶45, 57). The contributory infringement allegation is based on the assertion that Zydus's product is especially adapted for an infringing use and has no substantial non-infringing use (Compl. ¶¶46, 58).
- Willful Infringement: The complaint does not use the term "willful," but it alleges that Zydus has had knowledge of the patents since at least the date of its "NDA submission" (Compl. ¶¶47, 59). It further pleads that the case is "exceptional" and seeks attorneys' fees pursuant to 35 U.S.C. § 285 (Compl. ¶¶49, 61).

VII. Analyst's Conclusion: Key Questions for the Case

The resolution of this case will likely depend on the answers to a few central questions:

- A core issue will be one of factual formulation: Does the precise chemical composition disclosed in Zydus's confidential ANDA filing contain every element of the asserted

composition claims, including the specific "combination" of antioxidants in the claimed amounts?

- A key evidentiary question will be one of performance metrics: Does Zydus's proposed generic product, when produced, meet the claimed stability requirement of "less than 0.3% impurities formed by oxidative degradation," and what are the appropriate conditions and methods for making that determination?
- Finally, for the method patent, a critical question will be one of inducement: Assuming the composition infringes, does the proposed labeling for Zydus's product provide sufficient instruction and encouragement to prescribers and patients to use the drug for treating eosinophilic esophagitis, thereby satisfying the requirements for induced infringement?
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UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY

TAKEDA PHARMACEUTICALS U.S.A., INC. and
VIROPHARMA BIOLOGICS LLC,

Plaintiffs,

v.

ZYDUS PHARMACEUTICALS (USA) INC. and
ZYDUS LIFESCIENCES LTD.,

Defendants.

Plaintiffs Takeda Pharmaceuticals U.S.A., Inc. ("TPUSA") and ViroPharma Biologics LLC ("ViroPharma") (collectively, "Plaintiffs" or "Takeda"), by their attorneys, for their complaint against Zydus Pharmaceuticals (USA) Inc. and Zydus Lifesciences Ltd. (collectively, "Defendants" or "Zydus"), allege as follows:

NATURE OF THE ACTION

1. This is a civil action for infringement of United States Patent Nos. 11,260,064 (the "'064 patent") and 11,564,934 (the "'934 patent") (collectively, the "Patents-in-Suit") under the patent laws of the United States, 35 U.S.C. § 100, *et seq.* This action arises from Zydus's submission of Abbreviated New Drug Application ("ANDA") No. 221618 ("Zydus's ANDA") to the United States Food and Drug Administration ("FDA") seeking approval to manufacture, use, import, distribute, offer to sell, and/or sell a generic version of Plaintiffs' EOHILIA® drug product prior to the expiration of the Patents-in-Suit.

THE PARTIES

2. TPUSA is a corporation organized and existing under the laws of the State of Delaware, having an office and place of business at 500 Kendall Street, Cambridge, Massachusetts 02142.

3. ViroPharma is a corporation organized and existing under the laws of the State of Delaware, having an office and place of business at 300 Shire Way, Lexington, Massachusetts 02421.

4. On information and belief, Zydus Pharmaceuticals (USA) Inc. is a corporation organized and existing under the laws of New Jersey, having a principal place of business at 73 Route 31 North, Pennington, New Jersey, 08534.

5. On information and belief, Zydus Lifesciences Ltd. is a corporation organized and existing under the laws of India, having a principal place of business at Zydus Corporate Park, Scheme No. 63, Survey No. 536, Khoraj (Gandhinagar) Nr. Vaishnodevi Circle, S.G. Highway, Ahmedabad 382 481, India.

THE PATENTS-IN-SUIT

6. On March 1, 2022, the United States Patent and Trademark Office duly and lawfully issued the ’064 patent, entitled “Stable Corticosteroid Compositions” to ViroPharma as assignee of inventor Ramalingeswar Kasina. A copy of the ’064 patent is attached as Exhibit A.

7. On January 31, 2023, the United States Patent and Trademark Office duly and lawfully issued the ’934 patent, entitled “Stable Corticosteroid Compositions” to ViroPharma as assignee of inventor Ramalingeswar Kasina. A copy of the ’934 patent is attached as Exhibit B.

THE EOHILIA® DRUG PRODUCT

8. TPUSA holds approved New Drug Application No. 213976 for budesonide suspension for oral use, which is prescribed and sold under the trademark EOHILIA®. EOHILIA® is a corticosteroid indicated for 12 weeks of treatment in adult and pediatric patients 11 years of age and older with eosinophilic esophagitis.

9. Pursuant to 21 U.S.C. § 355(b)(1), and attendant FDA regulations, the Patents-in-Suit are listed in the FDA publication “Approved Drug Products with Therapeutic Equivalence Evaluations” (the “Orange Book”), with respect to EOHILIA®.

10. The claims of the ’064 patent cover, *inter alia*, pharmaceutical compositions comprising budesonide for oral administration. The claims of the ’934 patent cover, *inter alia*, methods of treating or alleviating the symptoms and inflammation associated with eosinophilic esophagitis comprising the administration of pharmaceutical compositions comprising budesonide.

11. The FDA-approved labeling for EOHILIA® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to orally administer EOHILIA® for 12 weeks of treatment in adult and pediatric patients 11 years of age and older with eosinophilic esophagitis.

JURISDICTION AND VENUE

12. This action arises under the patent laws of the United States, 35 U.S.C. §§ 100, *et seq.*, and this Court has jurisdiction over the subject matter of this action under 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202.

13. On information and belief, Zydus is in the business of, among other things, developing, manufacturing, marketing, importing, offering for sale, and selling pharmaceutical products, including generic drug products, throughout the United States, including in this Judicial District. Zydus's website states that Zydus is "a leading generic pharmaceutical company in the US." Zydus's website further states that "[t]he company currently offers more than 500 SKUs to the US market."

14. On information and belief, Zydus Pharmaceuticals (USA) Inc. and Zydus Lifesciences Ltd. work in privity and/or concert either directly or indirectly through one or more of their wholly owned subsidiaries with respect to the regulatory approval, manufacturing, use, importation, marketing, offer for sale, sale, and distribution of generic pharmaceutical products throughout the United States, including in this Judicial District. On information and belief, Zydus Lifesciences Ltd. manufactures generic pharmaceutical products for Zydus Pharmaceuticals (USA) Inc., which Zydus Pharmaceuticals (USA) Inc. sells and/or distributes for sale throughout the United States, including in this Judicial District.

15. On information and belief, Zydus Pharmaceuticals (USA) Inc. and Zydus Lifesciences Ltd. work in privity and/or concert either directly or indirectly through one or more of their wholly owned subsidiaries with respect to preparing and/or aiding in the preparation and submission of ANDAs to the FDA, including Zydus's ANDA. FDA's Orange Book identifies "ZYDUS PHARMACEUTICALS USA INC" as the holder of an ANDA for nearly six hundred generic prescription products and "ZYDUS LIFESCIENCES LTD" as the holder of an ANDA for more than one hundred generic prescription products. On information and belief, Zydus Pharmaceuticals (USA) Inc. is the ANDA holder for generic pharmaceutical products that Zydus Lifesciences Ltd. manufactures for sale and/or distribution by Zydus Pharmaceuticals (USA) Inc. throughout the United States, including in this Judicial District.

16. On information and belief, Zydus Pharmaceuticals (USA) Inc. and Zydus Lifesciences Ltd. act, operate, and/or hold themselves out to the public as a single integrated business.

17. On information and belief, Zydus Pharmaceuticals (USA) Inc. acts at the direction, and for the benefit, of Zydus Lifesciences Ltd. and is controlled and/or dominated by Zydus Lifesciences Ltd. Zydus's website states that "Zydus Pharmaceuticals (USA) Inc. is the US generic drug division of a much larger company known as Zydus Lifesciences. Zydus Lifesciences is a global, fully integrated pharmaceutical company with a presence in 50 countries and is committed to growing its presence around the world and in the United States."

18. On information and belief, Zydus derives substantial revenue, directly or indirectly, from selling generic pharmaceutical products throughout the United States, including in this Judicial District. Zydus's website states that, "[a]s a leading generic pharmaceutical company in the US, Zydus Pharmaceuticals offers a wide variety of FDA approved

medications that may help patients treat and manage disease, fight infection, and improve overall health and wellness." Zydus's Integrated Annual Report (2025-26) states that, as of March 2026, Zydus is the third-largest generic company in the US in terms of prescription volume, having moved up from fifth- to third-largest in the rankings over the previous four years. Moreover, Zydus's annual report discloses that, with regard to its generic products business, "[d]uring FY2025-26, the Company's total prescriptions (TRx) grew by 7% compared to the previous year." Zydus's Integrated Annual Report (2025-26) includes Zydus Pharmaceuticals (USA) Inc. in its consolidated financial statement and identifies Zydus Pharmaceuticals (USA) Inc. as a material subsidiary of Zydus Lifesciences Ltd.

19. On information and belief, each of Zydus Lifesciences Ltd. and Zydus Pharmaceuticals (USA) Inc. actively participated in the submission of Zydus's ANDA. On information and belief, Zydus Lifesciences Ltd. and Zydus Pharmaceuticals (USA) Inc. will work in privity and/or concert with one another and/or other related entities towards the regulatory approval, manufacturing, use, importation, marketing, offer for sale, sale, and distribution of generic pharmaceutical products, including those described in Zydus's ANDA, throughout the United States, including in New Jersey and in this Judicial District, prior to the expiration of the Patents-in-Suit.

20. On information and belief, Zydus intends to benefit directly if Zydus's ANDA is approved by participating in the manufacture, importation, distribution, and/or sale of the generic drug products that are the subject of Zydus's ANDA.

21. On information and belief, this Judicial District is a likely destination for the generic drug products described in Zydus's ANDA.

22. This Court has personal jurisdiction over Zydus Lifesciences Ltd. because, *inter alia*, it: (1) has purposefully availed itself of the privilege of doing business in the State of New Jersey, including directly or indirectly through its subsidiaries, agents, and/or alter egos, including Zydus Pharmaceuticals (USA) Inc., a company with a regular and established place of business in New Jersey; and (2) maintains extensive and systematic contacts with the State of New Jersey, including through the marketing, distribution, and/or sale of generic pharmaceutical drugs in New Jersey including through, directly or indirectly, Zydus Pharmaceuticals (USA) Inc.

23. In the alternative, this Court has personal jurisdiction over Zydus Lifesciences Ltd. because the requirements of Federal Rule of Civil Procedure 4(k)(2)(A) are met, as (a) Plaintiffs' claims arise under federal law; (b) Zydus Lifesciences Ltd. is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Zydus Lifesciences Ltd. has sufficient contacts with the United States as a whole, including, but not limited to, preparing and submitting an ANDA to the FDA and/or manufacturing and/or selling pharmaceutical products distributed throughout the United States, such that this Court's exercise of jurisdiction over Zydus Lifesciences Ltd. satisfies due process.

24. This Court has personal jurisdiction over Zydus Pharmaceuticals (USA) Inc. by virtue of, *inter alia*, its systematic and continuous contacts with the State of New Jersey. On information and belief, Zydus Pharmaceuticals (USA) Inc. maintains a regular and established, physical place of business at 73 Route 31 North, Pennington, New Jersey, 08534. On information and belief, Zydus Pharmaceuticals (USA) Inc. is registered with the

State of New Jersey's Division of Revenue and Enterprise Services as a business operating in New Jersey with Business ID No. 0100915422. On information and belief, Zydus Pharmaceuticals (USA) Inc. is registered with the State of New Jersey's Department of Health as a drug manufacturer and wholesaler under Registration No. 5003171. By virtue of its physical presence in New Jersey, this Court has personal jurisdiction over Zydus Pharmaceuticals (USA) Inc. On information and belief, Zydus Pharmaceuticals (USA) Inc. purposefully has conducted and continues to conduct business in this Judicial District.

25. This Court also has personal jurisdiction over Zydus Lifesciences Ltd. and Zydus Pharmaceuticals (USA) Inc. because, *inter alia*, they have committed an act of patent infringement under 35 U.S.C. § 271(e)(2). On information and belief, Zydus Lifesciences Ltd. and Zydus Pharmaceuticals (USA) Inc. intend a future course of conduct that includes acts of patent infringement in New Jersey. These acts have led and will continue to lead to foreseeable harm and injury to Plaintiffs in New Jersey and in this Judicial District.

26. On information and belief, Zydus Lifesciences Ltd. and Zydus Pharmaceuticals (USA) Inc. have previously invoked, stipulated, and/or consented to personal jurisdiction in this Judicial District in numerous prior patent cases.

27. Zydus Lifesciences Ltd. and Zydus Pharmaceuticals (USA) Inc. have previously been sued in this Judicial District, have not challenged personal jurisdiction in New Jersey, and have availed themselves of the legal protections of courts within this Judicial District through the assertion of counterclaims in suits brought in this Judicial District. See, e.g., *Chemocentryx, Inc. v. Zydus Pharms. (USA) Inc., et al.*, No. 26-556 (D.N.J.); *AstraZeneca Pharms. LP v. Zydus Pharms. (USA) Inc., et al.*, No. 24-10629 (D.N.J.); *Jazz Pharms. Ireland Ltd. v. Sandoz Inc. et al.*, No. 24-09110 (D.N.J.); *Genentech, Inc. v. Natco Pharma Ltd., et al.*, No. 24-10567 (D.N.J.); *Supernus Pharms., Inc. v. Zydus Lifesciences Global FZE, et al.*, No. 25-12188 (D.N.J.).

28. Zydus Pharmaceuticals (USA) Inc. has further availed itself of the jurisdiction of this Court by initiating litigation in this Judicial District. See, e.g., *Zydus Pharms. (USA) Inc. v. Novartis Pharms. Corp., et al.*, No. 19-21259 (D.N.J.); *Zydus Pharms. (USA) Inc. et al. v. Gilead Sciences, Inc.*, No. 14-07080 (D.N.J.); *Zydus Pharms. (USA) Inc. v. Eli Lilly and Co.*, No. 10-05584 (D.N.J.).

29. Venue is proper in this Judicial District pursuant to 28 U.S.C. §§ 1391 and/or 1400(b).

ACTS GIVING RISE TO THIS SUIT

30. Pursuant to Section 505 of the Federal Food, Drug, and Cosmetic Act ("FD&C Act"), Zydus submitted Zydus's ANDA seeking approval to engage in the commercial manufacture, use, sale, or offer for sale in, or importation into, the United States of budesonide oral suspension, 2 mg/10 mL ("Zydus's ANDA Product") before expiration of the Patents-in-Suit.

31. On information and belief, following any FDA approval of Zydus's ANDA, Zydus will make, use, offer for sale, or sell Zydus's ANDA Product throughout the United States, or import such generic products into the United States.

32. On information and belief, in connection with the submission of Zydus's ANDA as described above, Zydus provided written certification to the FDA pursuant to Section 505 of the FD&C Act and 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Paragraph IV Certification"), alleging that the claims of the Patents-in-Suit are invalid and/or will not be infringed by the activities described in Zydus's ANDA.

33. By letter dated August 18, 2026, Zydus purported to provide notice pursuant to Section 505(j)(2)(B)(iv) of the FD&C Act and 21 C.F.R. § 314.95 to Takeda Pharmaceuticals U.S.A., Inc. and ViroPharma Biologics LLC ("Zydus's Notice Letter") that Zydus had submitted its ANDA to the FDA with a Paragraph IV Certification, seeking approval to commercially manufacture, use, sell, offer for sale, or import Zydus's ANDA Product before expiration of the Patents-in-Suit.

34. Zydus's ANDA Product is intended to be a generic version of EOHILIA®.

35. Exhibit A to Zydus's Notice Letter purports to provide, pursuant to Section 505(j)(2)(B)(iv) of the FD&C Act and 21 C.F.R. § 314.95(c)(7), a detailed statement of the factual and legal bases for its Paragraph IV Certification.

36. This action is being commenced before the expiration of 45 days from the date of Zydus's Notice Letter.

COUNT I

Infringement of U.S. Patent No. 11,260,064

37. Plaintiffs repeat and reallege the preceding paragraphs above as if fully set forth herein.

38. Zydus's submission of ANDA No. 221618 for the purpose of obtaining approval to engage in the commercial manufacture, use, sale, offer for sale, or importation into the United States of Zydus's ANDA Product before the expiration of the '064 patent constitutes infringement under 35 U.S.C. § 271(e)(2)(A).

39. There is a justiciable controversy between the parties hereto as to infringement of the '064 patent.

40. On information and belief, following FDA approval, Zydus intends to provide labeling with Zydus's ANDA Product that instructs and encourages infringement, literally or under the doctrine of equivalents, of one or more claims of the '064 patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

41. For example, claim 1 of the '064 patent recites:

> A pharmaceutical composition comprising budesonide, an antioxidant in an amount of from about 0.05% to about 0.5% w/w of the composition, wherein the antioxidant comprises a combination of ascorbic acid and a pharmaceutically acceptable salt of ascorbate, and a flavoring agent, a sweetener, or a combination thereof, wherein the pharmaceutical composition comprises less than 0.3% impurities formed by oxidative degradation, and wherein the pharmaceutical composition is for oral administration.

42. On information and belief, Zydus's ANDA Product meets each element of claim 1 of the '064 patent, literally or under the doctrine of equivalents.

43. On information and belief, upon FDA approval of Zydus's ANDA, the labeling for Zydus's ANDA Product will instruct and encourage physicians, pharmacists, other healthcare workers, and patients to directly infringe one or more claims of the '064 patent under 35 U.S.C. § 271(a).

44. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will infringe one or more claims of the '064 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Zydus's ANDA Product in or for the United States.

45. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will induce infringement of one or more claims of the '064 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Zydus's ANDA Product in or for the United States. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will intentionally encourage acts of direct infringement with knowledge of the '064 patent and knowledge that its acts are encouraging infringement.

46. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '064 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Zydus's ANDA Product in or for the United States. On information and belief, Zydus has had and continues to have knowledge that Zydus's ANDA Product is especially adapted for a use that infringes one or more claims of the '064 patent and that there is no substantial non-infringing use for Zydus's ANDA Product.

47. Zydus has had knowledge of the '064 patent since at least the date of Zydus's NDA submission.

48. Plaintiffs will be substantially and irreparably harmed if Zydus's infringement of the '064 patent is not enjoined. Plaintiffs do not have an adequate remedy at law.

49. This case is an exceptional one, and Plaintiffs are entitled to an award of their reasonable attorneys' fees under 35 U.S.C. § 285.

COUNT II

Infringement of U.S. Patent No. 11,564,934

50. Plaintiffs repeat and reallege the preceding paragraphs above as if fully set forth herein.

51. Zydus's submission of ANDA No. 221618 for the purpose of obtaining approval to engage in the commercial manufacture, use, sale, offer for sale, or importation into the United States of Zydus's ANDA Product before the expiration of the '934 patent constitutes infringement under 35 U.S.C. § 271(e)(2)(A).

52. There is a justiciable controversy between the parties hereto as to infringement of the '934 patent.

53. On information and belief, following FDA approval, Zydus intends to provide labeling with Zydus's ANDA Product that instructs and encourages infringement, literally or under the doctrine of equivalents, of one or more claims of the '934 patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

54. For example, claim 1 of the '934 patent recites:

A method of treating, or alleviating the symptoms of and inflammation associated with eosinophilic esophagitis in a subject in need thereof comprising administering to the subject a pharmaceutical composition comprising budesonide, and an antioxidant in an amount of from about 0.05% to about 0.5% w/w of the composition, wherein the antioxidant comprises a combination of ascorbic acid and a pharmaceutically acceptable salt of ascorbate, wherein the pharmaceutical composition comprises less than 0.3% impurities formed by oxidative degradation.

55. On information and belief, Zydus's ANDA Product meets each element of claim 1 of the '934 patent, literally or under the doctrine of equivalents.

56. On information and belief, upon FDA approval of Zydus's ANDA, the labeling for Zydus's ANDA Product will instruct and encourage physicians, pharmacists, other healthcare workers, and patients to directly infringe one or more claims of the '934 patent under 35 U.S.C. § 271(a).

57. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will induce infringement of one or more claims of the '934 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Zydus's ANDA Product in or for the United States. On information and belief, upon FDA approval of Zydus's ANDA, Zydus will intentionally encourage acts of direct infringement with knowledge of the '934 patent and knowledge that its acts are encouraging infringement.

58. Unless enjoined by this Court, upon FDA approval of Zydus's ANDA, Zydus will contributorily infringe one or more claims of the '934 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Zydus's ANDA Product in or for the United States. On information and belief, Zydus has had and continues to have knowledge that Zydus's ANDA Product is especially adapted for a use that infringes one or more claims of the '934 patent and that there is no substantial non-infringing use for Zydus's ANDA Product.

59. Zydus has had knowledge of the '934 patent since at least the date of Zydus's NDA submission.

60. Plaintiffs will be substantially and irreparably harmed if Zydus's infringement of the '934 patent is not enjoined. Plaintiffs do not have an adequate remedy at law.

61. This case is an exceptional one, and Plaintiffs are entitled to an award of their reasonable attorneys' fees under 35 U.S.C. § 285.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully request the following relief:

A. A Judgment that Zydus has infringed one or more claims of the '064 patent by submitting ANDA No. 221618;

B. A Judgment that Zydus has infringed one or more claims of the '934 patent by submitting ANDA No. 221618;

C. A Judgment that Zydus has infringed, and that its making, using, selling, offering to sell, or importing Zydus's ANDA Product would constitute infringement of, one or more claims of the '064 patent, and/or induce or contribute to infringement of one or more claims of the '064 patent, pursuant to 35 U.S.C. §§ 271(a), (b) and/or (c);

D. A Judgment that Zydus has infringed, and that its making, using, selling, offering to sell, or importing Zydus's ANDA Product would induce or contribute to infringement of, one or more claims of the '934 patent, pursuant to 35 U.S.C. §§ 271(b) and/or (c);

E. A preliminary and permanent injunction restraining and enjoining Zydus and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from engaging in the commercial manufacture, use, offer for sale, or sale within the United States, or importation into the United States, of Zydus's ANDA Product until after the expiration of the Patents-in-Suit, or any later expiration of exclusivity to which Plaintiffs are or become entitled;

F. A permanent injunction, pursuant to 35 U.S.C. § 271(e)(4)(B), restraining and enjoining Zydus and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from inducing or contributing to the infringement of any claim of the Patents-in-Suit, until after the expiration of the Patents-in-Suit, or any later expiration of exclusivity to which Plaintiffs are or become entitled;

G. An Order that the effective date of any approval of ANDA No. 221618 relating to Zydus's ANDA Product is a date that is not earlier than the later of the expiration of the Patents-in-Suit, or any later expiration of exclusivity to which Plaintiffs are or become entitled;

H. To the extent that Zydus committed any acts with respect to the compositions and/or methods claimed in the Patents-in-Suit, other than those acts expressly exempted by 35 U.S.C. § 271(e)(1), a Judgment awarding Plaintiffs damages for such acts;

I. If Zydus engage(s) in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Zydus's ANDA Products prior to the expiration of the Patents-in-Suit, a Judgment awarding damages to Plaintiffs resulting from such infringement, together with interest;

J. A Judgment declaring that the '064 and the '934 patents remain valid;

K. A Judgment that this is an exceptional case pursuant to 35 U.S.C. § 285 and awarding Plaintiffs their attorneys' fees incurred in this action;

L. A Judgment awarding Plaintiffs their costs and expenses incurred in this action; and

M. Any such other and further relief as the Court may deem just and proper.

Dated: September 30, 2026

By: s/ Charles M. Lizza

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LOCAL CIVIL RULES 11.2 AND 40.1 CERTIFICATION

Pursuant to Local Civil Rules 11.2 and 40.1, I hereby certify that this matter is related to *Takeda Pharmaceuticals U.S.A., Inc., et al. v. Lupin, Ltd., et al.*, Civil Action No. 25-12574 (RK)(TJB) (D.N.J.) because it involves the same plaintiffs, the same patents, and defendants seeking approval to market a generic version of the same drug product.

I further certify that, to the best of my knowledge, the matter in controversy is not the subject of any other action pending in any court or of any pending arbitration or administrative proceeding.

Dated: September 30, 2026

By: s/ Charles M. Lizza

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